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Case Number: 26NNCV05109 Hearing Date: September 18, 2026 Dept: T

Rosemarie Ramos vs.

Terrace View Homeowners' Association, Inc., et al.

Motion to

Strike Post-Default Answer and Cross-Complaint

Moving Party: Plaintiff Rosemarie

Ramos

Responding Party: Defendants Terrace View

Homeowners' Association, Inc. and Lordon Enterprises, Inc.

Tentative Ruling: Deny

BACKGROUND

On June

29, 2026, Plaintiff Rosemarie Ramos ("Plaintiff") filed a complaint against Defendants Terrace View Homeowners' Association, Inc ("Terrace View"), Lordon Enterprises, Inc. ("Lordon"), and Does 1 through 20, alleging premises liability.

On

July 6, 2026, Plaintiff personally served the complaint on Defendants Terrace View and Lordon (collectively "Defendants").

On

August 6, 2026, after Defendants failed to timely respond to the complaint, Plaintiff filed requests for entry of default, which were entered against them

that same day. A few hours after these defaults were entered, Defendants filed an answer to the complaint and Terrace View filed a cross-complaint.

On August 20, 2026, Plaintiff filed the instant motion to strike the cross-complaint and answer as improper based on the defaulted status of Defendants.

Defendants oppose, and Plaintiff replies.

ANALYSIS

I. Legal Standard

A. Motion to Strike

California

law authorizes a party's motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436(a).) Motions may also target pleadings or parts of pleadings which are not filed or drawn in conformity with applicable laws, rules or orders. (Code Civ. Proc. § 436(b).) A motion to strike is used to address defects that appear on the face of a pleading or from judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see, also, City & County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 [motion may not be based on a party's declaration or factual representations made by counsel in the motion papers].) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion to strike may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.)

The

Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter “at any time in its discretion, and upon terms it deems proper.” (Code Civ. Proc. § 436.)

II. Meet

and Confer

Based

on the declaration of Plaintiff's counsel Joseph A. Govea, it does not appear that the parties met and conferred by telephone, video, or in person. (Govea Decl. ¶¶ 8–11.) Nevertheless, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Code Civ. Proc. § 435.5, subd. (a)(4).)

III. Discussion

A.

Motion to
Strike

In her motion to strike the answer and cross-complaint, Plaintiff argues that these pleadings must be stricken as improper because Defendants filed these pleadings after default was already entered against them on August 6, 2026.

“The entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered.” (Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385.) “A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action; he cannot thereafter, until such default is set aside in a proper proceeding, file pleadings or move for a new trial or demand notice of subsequent proceedings.” (Id. [quoting Brooks v. Nelson (1928) 95 Cal.App. 144, 147–148.]

At the outset, the Court notes that Plaintiff concedes that she failed to timely bring the instant motion under Code of Civil Procedure section 435(b)(1). Although this procedural defect warrants denial of the motion, this defect does not alter the undisputed chronology establishing the improper filing of these pleadings by Defendants after default was entered against them.

Therefore, the motion to strike is denied as untimely. However, as the post-default filing of these pleadings by Defendants was indisputably not made in conformity with California law, the Court shall exercise its discretion under Code of Civil Procedure section 436 and strike the answer and cross-complaint in their entirety. Furthermore, the Court notes that its ruling does not preclude Defendants from seeking relief under Code of Civil Procedure section 473 by way of a noticed motion.

RULING

Plaintiff

Rosemarie Ramos's Motion to Strike Post-Default Answer and Cross-Complaint is DENIED.

The

Court on its own motion orders that the Answer and Cross-Complaint filed on August 6, 2026, be stricken.